

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #01	CCRB Case #: 201504022	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 05/19/2015 9:07 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/19/2016	Precinct: 25		
Date/Time CV Reported Tue, 05/19/2015 11:31 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/19/2015 11:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM William Plume	04499	949493	PSA 5
2. DT3 Erin Barnes	03059	920008	GANG M
3. DT3 Matthew Sgambati	4473	944997	GANG M

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Tulipano	04140	949746	PSA 5
2. POM Randolph Holder	13340	949108	PSA 5
3. POM Javish Acevedo	12845	948586	PSA 5
4. SSA Agustine Rodriguez	01452	931939	PSA 5
5. SGT David Rodriguez	04063	939334	GANG M

Officer(s)	Allegation	Investigator Recommendation
A . POM William Plume	Abuse: PO William Plume stopped § 87(2)(b)	A . Unsubstantiated
B . DT3 Matthew Sgambati	Force: Det. Matthew Sgambati used physical force against § 87(2)(b)	B . Exonerated
C . DT3 Erin Barnes	Force: Det. Erin Barnes used physical force against § 87(2)(b)	C . Unfounded
D . DT3 Erin Barnes	Abuse: Det. Erin Barnes attempted to interfere with § 87(2)(b)'s ability to record the incident.	D . Unfounded
E . DT3 Matthew Sgambati	Abuse: Det. Matthew Sgambati threatened to damage § 87(2)(b)'s property.	E . Unfounded
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 19, 2015, at approximately 9:07 p.m., numerous officers responded to a shots fired radio call in the vicinity of § 87(2)(b) in Manhattan. Among the responding officers were PSA5 officers PO William Plume and PO Vincent Tulipano. PO Plume and PO Tulipano observed a group of 10 to 12 individuals walking towards their unmarked vehicle. Among this crowd was § 87(2)(b) year old § 87(2)(b) who PO Plume observed moving his hands inside the waistband of his shorts. PO Plume exited his vehicle, approached § 87(2)(b) identified himself as a police officer, and told him to stop (**Allegation A**). § 87(2)(b) responded by running and PO Plume pursued on foot while putting out a radio call that he was in foot pursuit of a fleeing suspect. Det. Erin Barnes and Det. Mathew Sgambati of the Manhattan North Gang squad, who were driving in the area, heard this radio call and observed PO Plume chasing § 87(2)(b). Det. Barnes drove their vehicle in front of § 87(2)(b) and parked. Det. Sgambati then got out of the vehicle, ran toward § 87(2)(b) and tackled him in front of § 87(2)(b) (**Allegation B**). PO Plume then caught up with and assisted Det. Sgambati in handcuffing § 87(2)(b). The tackle caused § 87(2)(b) to sustain a small cut to his forehead. The tackle was witnessed by § 87(2)(b) and his friend § 87(2)(b) who were eating outside of a nearby quesadilla stand.

A large crowd of civilians and officers then converged on the scene. After § 87(2)(b) was detained in handcuffs, § 87(2)(b) arrived on the scene and began filming with his cell phone. § 87(2)(b)

After approximately 10 to 15 minutes, § 87(2)(b) was escorted to a vehicle by PO Plume. § 87(2)(b) moved up right next to where the officers were walking by in order to get a better angle for filming § 87(2)(b). Observing § 87(2)(b)'s movement, Det. Barnes instructed § 87(2)(b) to step back at least twice. § 87(2)(b) told Det. Barnes that he was standing a reasonable distance away. Det. Barnes then allegedly swung his right arm out and struck § 87(2)(b) in the chest, causing § 87(2)(b) to sustain bruises and drop his phone (**Allegation C and D**). Det. Sgambati then walked quickly to where § 87(2)(b) dropped his phone and allegedly raised his foot as if to step on the phone (**Allegation E**). § 87(2)(b) picked his phone up off the ground before Det. Sgambati was able to bring his foot down and step on his phone.

§ 87(2)(b) Det. Barnes, and Det. Sgambati argued for approximately a minute over whether § 87(2)(b) had been standing a reasonable distance away. Det. Barnes and Det. Sgambati then left the scene in their unmarked vehicle.

§ 87(2)(b) was later released from the PSA5 stationhouse into his mother, § 87(2)(b) custody without any charges, although a juvenile report was filed. This report could not be obtained, because an unsealing order was required and § 87(2)(b) withdrew his involvement in the investigation before one could be signed. § 87(2)(b) withdrew his involvement in the CCRB investigation through § 87(2)(b) because he did not want to participate and § 87(2)(b) did not have any complaints.

§ 87(2)(b)

§ 87(2)(b) Hospital personnel refused to take photos of § 87(2)(b)'s injuries, so § 87(2)(b) took them himself. § 87(2)(b) was not arrested or summonsed in this incident.

§ 87(2)(b) filmed part of this incident on his cell phone and provided this **video** footage to the investigation along with two photos of his alleged injuries (5, 13, and 16 Board Review).



201504022 IA #8 Full Video.mp4

§ 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation, because § 87(2)(b) filed a lawsuit. Mediation was not pitched to § 87(2)(b)'s mother § 87(2)(b) because of § 87(2)(b)'s lawsuit and because she withdrew § 87(2)(b) from the investigation (01 Board Review).
- A FOIL registration confirmed that on June 15, 2015, § 87(2)(b) filed a notice of claim against the NYPD for this incident, § 87(2)(a) Gen.Mun. §50-H(3). No notice claim was filed by § 87(2)(b) or § 87(2)(b) (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(a) FCT § 380.1 § 784

Civilian and Officer CCRB Histories

- Since August 2014, § 87(2)(b) has filed or been involved in 11 other CCRB complaints involving 27 allegations. § 87(2)(b)
- This is § 87(2)(b)'s first CCRB complaint (04 Board Review).
- Det. Barnes has been a member of the NYPD for 17 years and has 14 other CCRB cases with 42 allegations including six substantiated allegations for a stop, a frisk, a discourtesy, and a refusal to provide a name and shield number. § 87(2)(g)
- Det. Sgambati has been a member of the NYPD for eight years and has three previous CCRB cases involving three allegations with no substantiated allegations. § 87(2)(g)

- PO Plume has been a member of the NYPD for five years and has two previous CCRB cases involving three allegations. Both of these cases were truncated § 87(2)(g) [REDACTED].

Potential Issues

- § 87(2)(b) [REDACTED]'s video does not show any of the allegations, which take place off camera (05 Board Review).
- Witness § 87(2)(b) [REDACTED] left the country before the investigation was able to contact him (See IA's pertaining to witness contact attempts).
- § 87(2)(b) [REDACTED] did not provide a statement to the investigation as his mother, § 87(2)(b) [REDACTED] chose to withdraw involvement on his behalf (see IA's pertaining to conversations with § 87(2)(b) [REDACTED]).

Findings and Recommendations

Allegation A –Abuse of Authority: PO William Plume stopped § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] said, in a verified statement, that he and § 87(2)(b) [REDACTED] were eating at an outside table next door to § 87(2)(b) [REDACTED] when they heard a car brake hard and then observed two plainclothes officers running towards § 87(2)(b) [REDACTED]. § 87(2)(b) [REDACTED] attempted to run a few feet, but then stopped, put his hands up and said, "I'm not running anymore" (06 and 07 Board Review).

PO Plume said that he and PO Tulipano were sitting in their unmarked vehicle, which was parked near the intersection of § 87(2)(b) [REDACTED] when they received a radio call reporting shots fired in the vicinity of § 87(2)(b) [REDACTED], at approximately 9:00 p.m. The radio report also mentioned that the shots were fired amongst the players at a basketball game. PO Plume did not remember if the radio report provided any specific description of the suspected shooter. At the time of the incident, PO Plume and PO Tulipano were aware of a gang war between two rival gangs based within the nearby Wagner Housing Projects. Within minutes of receiving this shots fired report, PO Plume and PO Tulipano observed a group of 10 to 12 individuals wearing basketball shorts and NYPD basketball league t-shirts walking in the direction of their vehicle. PO Plume said that he recognized several of these individuals as known gang members. PO Plume said that he observed § 87(2)(b) [REDACTED] make two movements in which he placed his hands inside of his waistband and adjusted his shorts for approximately 30 seconds. Based on his training and experience as a police officer, including having made prior firearms arrests, PO Plume believed § 87(2)(b) [REDACTED]'s movements indicated that he was adjusting a firearm concealed beneath his clothing. PO Plume said that he observed other individuals make similar movements, but that § 87(2)(b) [REDACTED]'s movements were the most exaggerated. PO Plume exited his vehicle, approached § 87(2)(b) [REDACTED] identified himself as a police officer, and told him to stop. § 87(2)(b) [REDACTED] responded by running and PO Plume pursued on foot while putting out a radio call that he was in foot pursuit of a fleeing suspect (10 Board Review).

Det. Sgambati and Det. Barnes confirmed that shortly after hearing the initial shots fired call, they heard a radio call from PO Plume that he was in foot pursuit of a suspect eastbound on § 87(2)(b) [REDACTED] and observed the pursuit. Det. Barnes did not remember if the shots fired call provided a description of the suspected shooter (08 and 09 Board Review).

Both Sgt. Rodriguez and PO Holder confirmed hearing the shots fired call over the radio but did not remember if there was a description of the suspected shooter (20 and 21 Board Review).

At the time of the incident, PO Plume was aware that shots were fired at a basketball game and knew that there was a gang war within the nearby Wagner Housing Projects. Within minutes of receiving this call, PO Plume observed § 87(2)(b) walking with 10 to 12 other individuals, including known gang members, all of whom were wearing basketball attire. At this point, PO Plume said that his attention became focused on § 87(2)(b) because § 87(2)(b) made two movements in which he placed his hands inside his waistband and adjusted his shorts for approximately 30 seconds. § 87(2)(g)

§ 87(2)(b)

Therefore, it is recommended that **Allegation A** be *unsubstantiated*.

Allegation B –Force: Det. Matthew Sgambati used physical force against § 87(2)(b)

§ 87(2)(b) said, in a verified statement, that he and § 87(2)(b) were eating at an outside table next door to § 87(2)(b) when they heard a car brake hard and then observed two plainclothes officers running towards § 87(2)(b). § 87(2)(b) attempted to run a few feet, but then stopped, put his hands up and said, “I’m not running anymore.” § 87(2)(b) said that the two plainclothes officers and three additional plainclothes officers grabbed § 87(2)(b) by the front of his shoulders and slammed him onto the ground. § 87(2)(b) hit his right cheek on the ground, which made a loud sound that several bystanders audibly reacted to. When § 87(2)(b) sat up, his cheek appeared to be red. § 87(2)(b) was not able to describe any of the officers, who tackled § 87(2)(b) aside from saying that they were plainclothes male officers. When § 87(2)(b) arrived on the scene, § 87(2)(b) was already sitting up in handcuffs (06 and 07 Board Review).

Det. Sgambati said that soon after he and Det. Barnes heard the shots fired call on the radio, they heard a radio call from PO Plume saying that he was engaged in a foot pursuit in the same vicinity. At approximately the same time, Det. Sgambati and Det. Barnes observed PO Plume pursuing § 87(2)(b) on foot. Det. Sgambati and Det. Barnes drove their vehicle down § 87(2)(b) until they were in front of § 87(2)(b). Det. Sgambati then got out of the vehicle and tackled § 87(2)(b) to the ground on his own. Det. Sgambati felt that tackling § 87(2)(b) was necessary for his safety, because he had been fleeing from another officer shortly after a shots fired call and not responding to orders to stop. As a result, Det. Sgambati felt that § 87(2)(b) might have a firearm or other weapon on him. PO Plume caught up and assisted Det. Sgambati by holding § 87(2)(b) on the ground and then handcuffing him. Det. Sgambati did not recall observing any injuries on § 87(2)(b) him complaining of any injuries, or him ever requesting medical treatment (08 Board Review).

Det. Barnes confirmed that he and Det. Sgambati heard a radio call from PO Plume that he was in foot pursuit of a suspect eastbound on § 87(2)(b) and observed the pursuit shortly after hearing the shots fired radio call. Det. Barnes also confirmed that they caught up to § 87(2)(b) in their vehicle and that Det. Sgambati stopped § 87(2)(b) after exiting the vehicle. Det. Barnes did not directly observe how Det. Sgambati stopped § 87(2)(b) but said that when he saw § 87(2)(b) again, he was on the ground. Det. Barnes never observed any injuries on § 87(2)(b) and never heard him complain of any injuries or force used against him (09 Board Review).

PO Plume confirmed that he pursued § 87(2)(b) on foot while putting out a radio call that he was in foot pursuit of a fleeing suspect. PO Plume did not observe officers tackle or use force against § 87(2)(b) but said that when he caught up, § 87(2)(b) was on the ground and being held down by two plainclothes officers while six to 10 other officers stood by. PO Plume assisted in handcuffing § 87(2)(b) but did not use any force. PO Plume said that § 87(2)(b) did not complain of any injuries and did not appear injured on the scene. Later at the stationhouse, PO Plume noticed a small laceration to § 87(2)(b)'s forehead, which PO Plume cleaned himself and then put a Band-Aid on (10 Board Review).

P.G. 203-11 says that officers must use minimum necessary force (11 Board Review).

In *People v. Lois Lubrano*, it was established that an officer was entitled to rely on information that he received from a fellow officer (12 Board Review).

§ 87(2)(g)

Therefore, it is recommended that

Allegation B be exonerated.

Allegation C –Force: Det. Erin Barnes used physical force against § 87(2)(b)

Allegation D –Abuse of Authority: Det. Erin Barnes attempted to interfere with § 87(2)(b)'s ability to record the incident.

§ 87(2)(b) said that as officers escorted § 87(2)(b) to a vehicle, he moved up closer until he was within a foot of where the officers were walking past. § 87(2)(b) said that he maintained a reasonable distance, which he defined as at least 20 feet from the individual being arrested. He did not believe that he was required to maintain a reasonable distance from officers not directly

interacting with the individual arrested. After moving forward, § 87(2)(b) held his cell phone up above his head to get a better angle. At the same time, Det. Barnes approached his blind side and allegedly swung his right forearm at § 87(2)(b)'s chest causing pain and serious bruising. § 87(2)(b) dropped his phone as a result of the strike and stumbled backwards into a tree. § 87(2)(b) described the strike as a quick hit and not a push. § 87(2)(b) said that after striking him, Det. Barnes accused § 87(2)(b) of brushing against his gun. § 87(2)(b) denied ever making physical contact with Det. Barnes or his gun prior to being stuck. The detectives left the scene, followed by § 87(2)(b) who called his civil attorney immediately after leaving the scene. After the incident, § 87(2)(b) immediately called his civil attorney, § 87(2)(b), who advised § 87(2)(b) to go to an emergency room and have photos taken of his injuries. § 87(2)(b) then went to the § 87(2)(b) (07 and 17 Board Review).

§ 87(2)(b) provided two pictures of his alleged injuries to the investigation. One picture was allegedly taken during his hospital visit and shows § 87(2)(b) lifting up his gray t-shirt to expose two circular red marks, approximately three to four inches in diameter, on either side of his chest. § 87(2)(b) has a hospital bracelet on his wrist. The second picture provided by § 87(2)(b) was allegedly taken a small unknown number of days after the incident and shows two circular yellowing bruises on either side of his exposed chest (13 and 16 Board Review).

In the relevant portion of § 87(2)(b)'s video of the incident captured via Snagit, an unseen officer, who Det. Barnes identified as himself, is heard at 00:15 saying "Step back" twice. § 87(2)(b) is heard responding that he is a reasonable distance. During his interview, § 87(2)(b) denied that the officer was speaking to him and did not know why he would respond to the officer if he had not been speaking to § 87(2)(b). At 00:17, § 87(2)(b)'s camera shakes. At 00:22, a male in a gray shirt, who § 87(2)(b) identified as himself, is seen picking up the phone while another male, who Det. Sgambati identified as himself, stands by. § 87(2)(b) reaches down and picks up his phone. The picture then cuts out, but § 87(2)(b) is heard arguing with the detectives and specifically says, "You come up on me and start hitting me. Why you like that?" A male voice, identified as Det. Sgambati then says, "Yea, but you're rubbing against my gun man. No, you tripped over that." A second male voice, who Det. Barnes identified as his, tells § 87(2)(b) "What you are is a little too close. What you should have been is over there with everyone else over there. You would have never got touched. Ok? Stay over there and it's not a problem" (05 Board Review).



201504022 IA 160 cut.mp4

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) said that Det. Barnes got to within one to two feet of § 87(2)(b) as the officers were escorting § 87(2)(b) away from the scene in handcuffs. At this point, § 87(2)(b) said

that § 87(2)(b) was standing closer to the street. § 87(2)(b) said that during this time, § 87(2)(b) began to yell at the officers, and Det. Barnes told him to mind his business in a raised voice. § 87(2)(b) did not observe § 87(2)(b) drop his phone and never observed any of the officers make physical contact with § 87(2)(b) (06 Board Review).

Det. Barnes said that as § 87(2)(b) was being escorted from the scene, Det. Barnes and Det. Sgambati began to leave, § 87(2)(b) moved closer to the officers to the point where it was a safety issue. Det. Barnes did not remember specifically how close § 87(2)(b) was to the officers. Det. Barnes and other officers ordered § 87(2)(b) to move back multiple times. § 87(2)(b) initially failed to comply with these instructions and stated that he had a right to film. Det. Barnes also stuck his right arm out to create a barrier and thereby prevent § 87(2)(b) from coming any closer. After numerous commands, § 87(2)(b) began to move back a little on his own, but tripped on an unknown object on the ground and dropped his phone. Det. Barnes denied ever striking § 87(2)(b) and did not believe that he ever made physical contact with § 87(2)(b) but he could not be sure. Det. Barnes said that § 87(2)(b) made an accusatory statement after he tripped along the lines of, “You didn’t have to do that.” Det. Barnes said that he and Det. Sgambati responded by laughing at § 87(2)(b) and telling him that he had tripped. Det. Barnes was shown pictures of § 87(2)(b)’s alleged injuries and said that nothing that took place during the incident would explain § 87(2)(b)’s injuries. § 87(2)(b) never complained of any injuries during the incident or requested medical treatment. Det. Barnes was familiar with § 87(2)(b) during the incident, but never intentionally interfered with § 87(2)(b)’s ability to record the incident (09 Board Review).

Det. Sgambati confirmed Det. Barnes’ statements that § 87(2)(b) was instructed numerous times to move back by Det. Barnes, but that § 87(2)(b) moved much closer to the officers. Det. Sgambati added that § 87(2)(b) moved to the cobblestones in front of a tree box right next to where the officers were walking. Det. Barnes held out his arm to prevent § 87(2)(b) from coming any closer, but never struck § 87(2)(b) nor made any physical contact with § 87(2)(b). Det. Sgambati said that § 87(2)(b) tripped on part of the sidewalk on his own and dropped his phone. Det. Sgambati denied that he or any officer made physical contact with § 87(2)(b) or that § 87(2)(b) ever rubbed again his or any officer’s gun (08 Board Review).

A Finest Message dated August 6, 2014, says that while officers may not intentionally interfere with the recording of police interactions, individuals may not interfere with police operations. Additionally, the Finest Message instructs officers to advise individual not to get too close and that they may take action if an individual interferes with the operation, or the safety of officers or the public (14 Board Review).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegations C** and **D** be *unfounded*.

Allegation E –Abuse of Authority: Det. Matthew Sgambati threatened to damage § 87(2)(b)'s property.

§ 87(2)(b) said that after dropping his phone, Det. Sgambati walked over to where his phone was on the ground and lifted his foot as if to step on the phone. § 87(2)(b) reached down and picked up his phone before Det. Sgambati could step on it (07 Board Review).

§ 87(2)(b) never observed § 87(2)(b)'s phone fall to the ground and did not describe an officer resembling Det. Sgambati (06 Board Review).

In the relevant portion of § 87(2)(b)'s video of the incident captured via Snagit, at 00:22, a male in a gray shirt, who § 87(2)(b) identified as himself, is seen calmly picking up the phone while another male, who Det. Sgambati identified as himself, stands by. § 87(2)(b) then reaches down and calmly picks up his phone. The picture then cuts out, but § 87(2)(b) is heard arguing with officers (05 Board Review).

Det. Sgambati said that he was standing right next to § 87(2)(b) when § 87(2)(b) dropped his phone, but denied that he ever made any attempt to step on § 87(2)(b)'s phone. Det. Barnes confirmed that he never observed Det. Sgambati attempt to step on § 87(2)(b)'s phone (08 and 09 Board Review).

Neither Sgt. Rodriguez, PO Holder, nor PO Plume was in a position to observe Det. Sgambati interact with § 87(2)(b) as they had already left the scene (10, 20, and 21 Board Review).

§ 87(2)(g)

§ 87(2)(g) [redacted]
[redacted]
[redacted] Therefore, it is recommended that **Allegation E** be *unfounded*.

§ 87(2)(g), § 87(4-b) [redacted]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

[redacted]
[redacted]
[redacted]
[redacted]
[redacted].

Squad: 1

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date